



CHAPTER lvi.

An Act to empower the Corporation of Rochdale A.D. 1930.
 to construct additional waterworks to make
 further provision with respect to the water
 undertaking of the Corporation and for other
 purposes. [15th April 1930.]

WHEREAS the mayor aldermen and burgesses of
 the borough of Rochdale (hereinafter referred to
 as "the Corporation" and "the borough" respectively)
 in pursuance of the Acts and Orders relating to their
 water undertaking supply water within a large area
 including the borough and certain surrounding districts :

And whereas it is expedient that the supplies of
 water at present available to the Corporation should be
 increased and that they should be empowered to make
 and maintain the new waterworks in this Act described
 and that further powers should be conferred upon them
 in relation to their water undertaking as by this Act
 provided :

And whereas estimates have been prepared by the
 Corporation in relation to the following purposes in
 respect of which they are by this Act authorised to
 borrow money and such estimates are as follows (that
 is to say) :—

For the purchase of lands and for the	£
construction of the waterworks by	
this Act authorised	620,000

And whereas the several works included in such
 estimates are permanent works and it is expedient that

[Price 1s. Net]	A	I
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— as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas plans and sections showing the lines situations and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Rochdale Corporation Water Act 1930.

Incorporation of Acts. 2. The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

(1) The Lands Clauses Acts with the following exception and modification :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section:

(2) The Waterworks Clauses Act 1847 :

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Provided that for the purpose of the incorporation of the said Act with any Act of the Corporation it shall be read and have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" in section 44 and sections 75 to 82 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts were excepted from incorporation:

(3) The Waterworks Clauses Act 1863 :

(4) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in construing those provisions "the railway" means the works by this Act authorised "the centre of the railway" means respectively the boundaries of the reservoirs and the centres of the other works by this Act authorised and "the Company" means the Corporation.

3. Subject to the provisions of this Act and unless the subject or context otherwise requires the several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned shall in this Act have in relation to the relative subject-matter the same respective meanings And in this Act—

"The borough" means the borough of Rochdale;

"The Corporation" means the mayor aldermen and burgesses of the borough;

"The town clerk" means the town clerk of the borough and includes any person duly appointed by the Corporation to discharge temporarily the duties of such officer;

"The Lands Clauses Acts" means those Acts and the Acquisition of Land (Assessment of Compensation) Act 1919;

"The arbitrator" means the arbitrator to whom any question of disputed compensation is referred under the provisions of this Act;

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“The waterworks” means the works by this Act authorised;

“The water undertaking” means the water undertaking of the Corporation as from time to time authorised;

“The limits of supply” means the limits within which the Corporation are from time to time authorised to supply water;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough; and

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

All distances and lengths stated in any description of works or lands shall be read and have effect as if the words “or thereabouts” were inserted after each such distance and length.

Power to
make water-
works.

4. Subject to the provisions of this Act the Corporation may as part of and for all or any of the purposes of the water undertaking make and maintain in accordance with the deposited plans and sections and upon the lands delineated on those plans and described in the deposited book of reference the following works in the county palatine of Lancaster and for all or any of such purposes may enter upon take and use all or any of the lands delineated on the deposited plans relating thereto and described in the deposited book of reference (that is to say) :—

Work No. 1 A reservoir in the urban district of Wardle to be formed by means of a dam or embankment across Higher Slack Brook and Wardle Brook commencing at a point 5 chains south of the farmhouse known as Alder Bank Farm and terminating at a point 8 chains south-west of the farmhouse known as Hey Barn The said reservoir will extend from the said dam or embankment to a point on the Higher Slack Brook $3\frac{1}{2}$ chains north of Roads Mill and

to a point on the Wardle Brook 3 chains north of the filter tanks of the disused Water Grove Mill; A.D. 1930.

Work No. 2 A tank or reservoir in the urban district of Wardle situate in the enclosure numbered 377 on the $\frac{1}{2500}$ Ordnance map of the parish of Wardle (sheet LXXXI-9 Edition 1910) at a point $2\frac{1}{2}$ chains north of the farmhouse known as Lower House;

Work No. 3 An aqueduct (partly in tunnel) in the urban district of Wardle commencing at a point in the reservoir (Work No. 1) $1\frac{3}{4}$ chains east of the premises known as No. 449 Ramsden Road and terminating in Wardle Brook at a point 8 chains north-east of the farmhouse known as Trap Farm;

Work No. 4 An aqueduct (partly in tunnel) in the urban district of Wardle commencing at a point in the reservoir (Work No. 1) 8 chains east-north-east of the farmhouse known as Alder Bank Farm and terminating in the tank or reservoir (Work No. 2);

Work No. 5 An aqueduct conduit or line or lines of pipes commencing in the urban district of Wardle in the tank or reservoir (Work No. 2) and terminating in the borough at the junction of Whitworth Road and Fieldhouse Road;

Work No. 6 An aqueduct in the urban district of Wardle commencing at a point 6 chains south-west of the farmhouse known as Stid Slack and terminating in the reservoir (Work No. 1) at a point $3\frac{1}{2}$ chains south-east of the farmhouse known as Alder Bank Farm;

Work No. 7 An aqueduct (partly in tunnel) commencing in the urban district of Whitworth at a point $5\frac{1}{4}$ chains east of the farmhouse known as Dury Lane and terminating in the urban district of Wardle at the junction of Calf Clough and Higher Slack Brook;

Work No. 8 An aqueduct (partly in tunnel) commencing in the urban district of Littleborough at a point $5\frac{1}{2}$ chains south-east of the farmhouse known as Top o' th' Clough and terminating in the urban district of Wardle at a

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point 8 chains west of the farmhouse known as Hey Barn;

Work No. 9 An aqueduct in the urban district of Wardle commencing at a point 3 chains south-east of the farmhouse known as Hey and terminating at a point 8 chains south-west of the farmhouse known as Hey Barn;

Work No. 10 A diversion of Ramsden Road in the urban district of Wardle between a point opposite the barn adjoining the farmhouse known as Little Town Farm and a point 4 chains north of the farmhouse known as Trap Farm;

Work No. 11 An aqueduct conduit or line or lines of pipes in the urban district of Wardle commencing at the south side of the reservoir belonging to the disused Clough House Mill at a point $1\frac{1}{2}$ chains east of the west end of the said reservoir and terminating in Knowl Syke Brook at a point 5 chains west of Wardle Mill.

Power to
make sub-
sidiary
works.

5. In addition to the foregoing works the Corporation may upon any lands delineated on the deposited plans make and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to any of the works by this Act authorised but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Power to
deviate.

6. In the construction of the waterworks the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards:

Provided that—

(a) the Corporation shall not construct any embankment or wall of a reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition; and

(b) except for the purpose of crossing over a stream or a railway no part of the aqueducts conduits or lines of pipes (Works Nos. 5 and 11) by this Act authorised shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections. A.D. 1930.

7. If the works by this Act authorised are not completed within the period expiring on the first day of October one thousand nine hundred and forty-five the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of works.

8. Subject to the provisions of this Act the Corporation may collect impound take use divert and appropriate for the purposes of the water undertaking the waters of the following streams namely Higher Slack Brook Calf Clough Copy Clough Long Shoot Clough Wardle Brook Hills Clough Turn Slack Clough Blue Pot Brook Shackleton Clough the River Spodden Red Shore Knowsley Clough Land Gate Clough and Clough House Brook and all such other springs streams and waters as may be intercepted by means of the waterworks and any subsidiary works in connection with those works. Power to take waters.

9.—(1) (a) During the first filling of the reservoir (Work No. 1) the Corporation shall during every period from 6 a.m. on Monday to 6 p.m. on the following Saturday so long as there shall be in the said reservoir sufficient water to enable them so to do discharge or cause to flow in a continuous flow— Compensation water &c.

(i) into the Knowl Syke Brook at a point therein situate not more than 700 yards below the foot of the embankment of the said reservoir not less than 1,750,000 gallons of water;

(ii) into the Clough House Brook at a point therein situate not more than 200 yards below the reservoir belonging to the disused Clough House Mills not less than 1,750,000 gallons of water.

(b) During the first filling of the reservoir (Work No. 1) the Corporation shall during every period from midnight on Saturday to midnight on the following Saturday so long as there shall be in the said reservoir sufficient water to enable them so to do discharge or cause to flow in a continuous flow into the Wardle Brook

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(2) (a) After the completion and first filling of the reservoir (Work No. 1) the Corporation shall during every period from 6 a.m. on Monday to 6 p.m. on the following Saturday discharge or cause to flow in a continuous flow—

(i) into the Knowl Syke Brook at a point therein situate not more than 700 yards below the foot of the embankment of the said reservoir not less than 1,750,000 gallons of water (in this section referred to as “compensation water”);

(ii) into the Clough House Brook at a point therein situate not more than 200 yards below the reservoir belonging to the disused Clough House Mills not less than 1,750,000 gallons of water (also in this section referred to as “compensation water”).

(b) After the completion and first filling of the reservoir (Work No. 1) the Corporation shall during every period from midnight on Saturday to midnight on the following Saturday discharge or cause to flow in a continuous flow into the Wardle Brook at a point therein situate not more than 200 yards below the foot of the embankment of the said reservoir not less than 900,000 gallons of water (also in this section referred to as “compensation water”).

(c) For the purpose of measuring the compensation water the Corporation shall construct and maintain at or near each of the said points of discharge into the said brooks a proper and sufficient automatically recording measuring gauge over or through which the compensation water shall flow and the said gauges and the records obtained by means thereof shall be open to the inspection and examination of the joint committee of the rivers Mersey and Irwell (in this section referred to as “the joint committee”) and of all persons interested in the compensation water.

(3) (a) At the points where the aqueducts specified in the first column of the following table cross the brooks specified in the second column thereof the Corporation shall provide outlets into the brooks and shall not permit water to flow down the aqueduct from any such point unless the flow of water through the outlet

at that point shall be at a rate per twenty-four hours not less than that specified in the third column thereof (that is to say):— A.D. 1930.

Work.	Name of Brook.	Rate of flow.
		Gallons per day.
No. 7 {	Shackleton Clough - -	85,000
	Red Shore - -	60,000
	Land Gate Clough - -	60,000
No. 8 {	Turn Slack Clough - -	163,000 (in the months of October to May inclusive)
		250,000 (in the months of June to September in- clusive)
	Hills Clough - -	100,000

(b) For the purpose of measuring the rate of flow in the said brooks respectively the Corporation shall construct and maintain immediately below each of the said outlets a proper and sufficient automatically recording measuring gauge and the said gauges and the records obtained by means thereof shall be open to the inspection and examination of the joint committee and of all persons interested therein.

(4) If the Corporation commit any breach of any of the foregoing provisions of this section they shall for every day on which such breach occurs forfeit and pay to the persons affected by such breach including the joint committee who may sue for and recover the same the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them by reason of such breach the amount of such compensation in case of non-agreement to be determined by an arbitrator to be appointed on the application of either party by the Minister of Health.

(5) If any difference arise between the Corporation and the joint committee or any person interested in any of the said gauges with respect to the form construction maintenance or use thereof or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated unless otherwise agreed on the application of either of them by the President of the Institution of Civil Engineers.

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(6) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the Corporation can divert collect impound or appropriate by means of the waterworks.

For preven-
tion of
plumbism.

10. All water supplied by the Corporation in pursuance of this Act for domestic purposes shall be pure and wholesome. If at any time it shall appear to the Corporation that any water so supplied by them is liable to act upon lead in such a manner as to endanger the health of the consumer the Corporation shall forthwith treat any water so supplied so as to prevent such action.

Discharge of
water into
streams.

11.—(1) For the purpose of constructing enlarging extending repairing cleansing emptying or examining any work by this Act authorised the Corporation may cause the water in any such work to be discharged into any available stream or watercourse. Provided that any water so discharged shall so far as may be reasonably practicable be free from mud or solid or offensive matter.

(2) In the exercise of the powers conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons interested for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

(3) The powers of this section shall not be exercised so as to damage or injuriously affect the railways or works of any railway company.

As to extra-
ordinary
traffic.

12. Before commencing such haulage of materials and things for the execution of the works by this Act authorised as would amount to extraordinary traffic upon or over the roads in the urban district of Wardle known as Birch Road Wardle Road or Ramsden Road the Corporation shall give notice in writing to the surveyor to the Wardle Urban District Council (in this section called "the Wardle Council") and so far as may be practicable shall comply with his reasonable directions in respect of such haulage and will if so required by the Wardle Council during the period of such haulage take over maintain and repair at the expense of the Corporation but to the reasonable satisfaction and under the superintendence of the said surveyor the said roads and after such haulage

is completed hand over the said roads to the Wardle Council in as good a condition as they were in before such haulage was commenced. A.D. 1930.

Any dispute or difference arising under this section shall be settled by an engineer to be agreed upon between the Wardle Council and the Corporation or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

13. For the protection of Bleachers Association Limited their successors and assigns owners for the time being of the Hampson Works Bury the Springwater Works Whitefield the Mount Sion Works Radcliffe and the Lever Bank Bleachworks Little Lever (all of whom are in this section included in the expression "the association") the following provisions shall unless otherwise agreed between the Corporation and the association apply and have effect (that is to say) :—

For protection of Bleachers Association Limited.

- (1) In addition to the water required to be discharged into the Knowl Syke Brook in pursuance of the section of this Act of which the marginal note is "Compensation water &c." the Corporation shall also during every day after the expiration of the week from midnight on Saturday to midnight on the following Saturday which commences next after the completion and first filling of the reservoir (Work No. 1) discharge or cause to flow in a continuous flow into the Knowl Syke Brook over or through the automatically recording measuring gauge provided by the Corporation under the said section at or near the point of discharge of compensation water into that brook an amount of water equal to one-seventh part of the amount by which the aggregate quantities of water which during the immediately preceding week from midnight on Saturday to midnight on the following Saturday (a) shall have been actually discharged in pursuance of subsection (2) of the said section and (b) shall have flowed through the outlets referred to in subsection (3) thereof shall have been less than eight million five hundred and twelve thousand gallons :

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(2) If the Corporation commit any breach of the provisions of this section they shall for every day on which such breach occurs forfeit and pay to the association the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by the association by reason of such breach the amount of compensation in case of non-agreement to be determined by an arbitrator to be appointed on the application of either party by the Minister of Health :

(3) The provisions of this section and of the section of this Act of which the marginal note is "Compensation water &c." shall be accepted and taken by the association in full satisfaction for any compensation or damage for loss of water to which they would have been entitled in consequence of the exercise of the powers of the Corporation under this Act.

For protec-
tion of
Henry
Waugh.

14. For the protection of Henry Waugh or other the owner for the time being of Wasp Mills in the urban district of Wardle (in this section referred to as "the owner") the following provisions shall unless otherwise agreed between the Corporation and the owner apply and have effect (that is to say):—

(1) The Corporation shall take such steps as may be necessary to secure that all water which shall overflow from the reservoir (Work No. 1) by this Act authorised shall so far as reasonably practicable be directed into the Wardle Brook and the Knowl Syke Brook in proportion to the area of the portions of gathering grounds of those brooks respectively which are situate above the reservoir:

(2) The water which the Corporation are by this Act required to discharge or cause to flow into the Wardle Brook after the first filling of the said reservoir shall as far as reasonably practicable be water derived from that brook which has not passed through the said reservoir and shall be conveyed by means of a pipe or conduit commencing at a point in the said brook above the reservoir and terminating at a point in the said brook within two hundred

yards of the foot of the embankment of the reservoir which pipe or conduit the Corporation shall at their own cost prior to the completion of the first filling of the reservoir lay and thereafter maintain: A.D. 1930.

(3) The Corporation shall at their own cost provide and lay down and the owner shall thereafter at his own cost maintain a pipe of four inches diameter from the main of the Corporation in Wardle Road to such point at the said Wasp Mills as may be agreed or failing agreement be determined by arbitration as hereinafter provided and from and after the date when the first filling of the reservoir is commenced the Corporation shall by means of such pipe supply free of cost to the owner such a quantity of water as the owner may from time to time by notice in writing to the Corporation demand not exceeding in any one year an aggregate quantity of one million six hundred thousand gallons and the Corporation shall at their own cost provide fix and maintain a meter for measuring the quantity of water supplied by means of the said pipe:

(4) Any difference which shall arise between the Corporation and the owner under this section shall be determined by an engineer to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

15. The following provisions for the protection of Frederick Scott and Company Limited (in this section referred to as "the owners") shall unless otherwise agreed between the owners and the Corporation have effect (that is to say):—

For protection of Frederick Scott and Company Limited.

(1) The owners shall be entitled to exercise all such rights in the Turn Slack Dam as they enjoy at the passing of this Act and the Corporation shall not under the powers of this Act divert interfere with or in any way affect the supply of water to the said dam or restrict or interfere with such rights as the owners

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possess at the passing of this Act to discharge or cause to flow from or out of the said dam all or any of the waters impounded therein Provided that all waters discharged or caused by the owners to flow from the said dam shall be permitted to flow into the aqueduct (Work No. 8) by this Act authorised above the outlet therein which is referred to in subsection (3) (a) of the section of this Act of which the marginal note is "Compensation water &c." and may be reckoned as part of the quantities of water flowing through the said outlet into Turn Slack Clough in pursuance of the said subsection and when in excess of such quantities may be appropriated by the Corporation by means of the said aqueduct:

- (2) Any difference which shall arise between the Corporation and the owners under this section shall be referred to the arbitration of an engineer to be nominated unless otherwise agreed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
 London
 Midland and
 Scottish
 Railway
 Company.

16. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the company and the Corporation apply and have effect (that is to say):—

- (1) Where Work No. 5 or any work connected therewith (hereinafter referred to as "the said Work No. 5") by this Act authorised is laid or constructed over any lands or property of the company the same and all works forming part thereof and any maintenance repairs or renewals thereof shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the company (in this section referred to as "the principal engineer") and (except in cases of emergency) before commencing any such works the Corporation shall

deliver to the principal engineer plans sections and specifications of the works proposed to be executed. Such plans sections and specifications shall be delivered at least one month before the commencement of any such work and if at the expiration of one month from such delivery of the plans sections and specifications the principal engineer shall not disapprove the same he shall be deemed to have approved thereof. All such works shall when commenced be completed with due dispatch in accordance with the plans sections and specifications so approved or settled in accordance with the provisions of this section and shall be executed by and in all things at the expense of the Corporation and so as not to cause any injury to the railway works lands or property of the company or interruption to the passage or conduct of the traffic over the said railway and if by the execution of such works any injury shall arise to the said railway works lands or property or interruption to such traffic the Corporation shall make full compensation to the company in respect of such injury or interruption:

- (2) The Corporation shall not without the consent of the principal engineer which consent shall not be unreasonably withheld in constructing the said Work No. 5 over the railway of the company deviate from the centre line as shown on the deposited plans or from the levels thereof as shown on the deposited sections:
- (3) The Corporation shall at all times maintain the said Work No. 5 where the same is carried over the railway works or property of the company in substantial repair and good order and condition to the reasonable satisfaction of the principal engineer and if and whenever the Corporation fail so to do the company may make and do all such works and things as may be reasonably requisite in that behalf and the expenditure so reasonably incurred by the company shall be repaid to them by the Corporation:

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- (4) If by reason of any works or proceedings of the Corporation or of their contractors or workmen or of the leakage bursting or failure of the said Work No. 5 otherwise than by reason of any act or default of the company the said railway or any of the works or lands thereof shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their own expense and to the reasonable satisfaction of the principal engineer and in the event of their failing so to do or in case of emergency the company may do all such works and things as may be reasonably requisite to make good the same and recover the expenditure so reasonably incurred from the Corporation and if any interruption shall be caused to the traffic of the said railway by reason of the said Work No. 5 or of any such leakage bursting or failure as aforesaid the Corporation shall make good and repay to the company any loss damage or expense which they may sustain or be put to by reason of such interruption :
- (5) The Corporation shall bear and on demand pay to the company the reasonable expense of the reasonable employment by them during the making or maintenance of the said Work No. 5 over the said railway and works of a sufficient number of inspectors signalmen or watchmen for inspecting such works and for watching the said railway and works and the conduct of the traffic thereon with reference to and during the execution and maintenance of the works of the Corporation and for preventing danger and accident and as far as may be all interference and obstruction from any of the operations or from the acts or defaults of any person or persons in the employ of the Corporation with reference thereto or otherwise :
- (6) If the company shall at any time after the construction of the said Work No. 5 desire to alter or extend their railway or any of the works or conveniences connected therewith

the Corporation shall give to the company every reasonable facility for the execution of such alteration or extension and any additional expense to which the company may be put in the exercise of their existing powers in carrying out any such alteration or extension of the railway by reason of the construction of the said Work No. 5 shall be repaid to them by the Corporation :

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- (7) Any difference which shall arise between the Corporation and the company or their respective engineers under this section shall be referred to and determined on the application of either party by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

17. The Corporation may also subject to the provisions of this Act enter upon take and use the following lands in the county of Lancaster delineated on the deposited plans and described in the deposited book of reference (that is to say) :—

Power to
acquire
further
lands.

Lands situate wholly in the urban district of Wardle and comprised within a line commencing at the junction of Barn Field Lane and Hard Lane and running in a north-westerly direction to a point 5 chains due west of High Wardle and thence in a northerly direction to the boundary between the said urban district and the urban district of Whitworth 7 chains due west of Hades Hill End thence due east-north-east to a point on the boundary between the urban district of Wardle and the borough of Todmorden thence in a southerly and south-easterly direction along the said boundary to a point thereon 38 chains due east-north-east of Scotch Cote thence in a south-westerly direction to a point 9 chains due south-east of Lower Dobbin thence in a westerly direction to a point 2 chains south of Trap Farm thence along the western boundary of Ramsden Road to a point thereon 5 chains south of Sheriff Hall thence in a south-westerly direction to

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the footbridge over Knowl Syke Brook west of Wardle Mill thence in a southerly direction to a point in Clough House Brook 6 chains measured in a south-easterly direction along that brook from the footbridge thereover at the disused Clough House Mill thence due west for a distance of 30 chains thence due north for a distance of 9 chains thence due east for a distance of 28 chains thence due north for a distance of 10 chains and thence in a north-westerly direction to the junction of Barn Field Lane and Hard Lane.

Owners may
 be required
 to sell parts
 only of
 certain
 properties.

18. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties specified in the schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are in this section included in the term “the owner” and the said properties are in this section referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the arbitrator shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed : A.D. 1930.
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- (4) If the arbitrator determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the arbitrator shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator :
- (5) If the arbitrator determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the arbitrator determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall

A.D. 1930.

pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

- (7) If the arbitrator determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Corporation
may acquire
easements
only in cer-
tain cases.

19.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the waterworks where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired easements only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the

time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not been passed. A.D. 1930.

(3) Nothing in this section shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

20. Where under the powers of this Act the Corporation shall acquire any easement or right in under or through any lands for the construction of any work by this Act authorised the Corporation may at any time thereafter if they see fit purchase by agreement from the owner thereof the lands lying over under and alongside such work. Power to purchase lands already subject to easements.

21. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease on the first day of October one thousand nine hundred and thirty-three. Period for compulsory purchase of lands.

22. Any new dwelling-houses erected under any housing scheme approved by the Minister of Health in pursuance of section 98 of the Housing Act 1925 for the purpose of re-housing persons belonging to the working class now residing in the urban district of Wardle shall be erected in the said urban district. Re-housing of persons of working class in Wardle.

23. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

24.—(1) The Corporation may stop up so much of Ramsden Road in the urban district of Wardle as lies between the commencement and termination of the road diversion (Work No. 10) authorised by this Act Provided that the Corporation shall not stop up the said portion of road hereinbefore described until the said diversion of road (Work No. 10) is completed to the satisfaction of Power to stop up roads and footpaths.

A.D. 1930. — the road authority and is opened for public use or in case of difference between the Corporation and the road authority until two justices shall have certified that the same has been completed to their satisfaction and is open for public use. Provided also that before applying to the justices for their certificate the Corporation shall give to the road authority seven days' notice in writing of their intention to apply for the same.

(2) The Corporation may also stop up any public bridle paths or footpaths situate upon any part of the lands shown on the deposited plans which forms the site of the dam or embankment of Work No. 1 by this Act authorised or will be submerged by the construction and filling of the said work when such part of the lands has been acquired by the Corporation.

(3) As from the completion of the road diversion (Work No. 10) authorised by this Act to the satisfaction of the road authority or as from the date of the said certificate (as the case may be) all rights of way over or along the existing portion of road as will be rendered unnecessary by the new portion of road and as from the stopping up of any bridle path or footpath in pursuance of subsection (2) of this section all rights of way over and along the same shall be extinguished and the Corporation may subject to the provisions of the Waterworks Clauses Act 1847 with respect to mines appropriate and use for the purposes of the water undertaking the site of the portions of road and bridle path or footpath stopped up as far as the same is bounded on both sides by lands of the Corporation and the site of such portions of road and bridle path or footpath shall be vested in them.

(4) The Corporation shall make full compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

Persons
under dis-
ability may
grant ease-
ments &c.

25. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an

interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in that behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1930.
 —

26. In settling any question of disputed purchase money or compensation for lands acquired by the Corporation under this Act the arbitrator shall not award any sum of money for or in respect of any improvement or alteration made or any building erected after the fourth day of July one thousand nine hundred and twenty-nine if in the opinion of the arbitrator the improvement alteration or building in respect of which the claim is made was made or erected with a view to obtaining or increasing compensation nor in the case of any estate or interest in the lands created after the said date which in the opinion of the arbitrator was created with a view to obtaining or increasing compensation shall any sum of money be awarded so as to increase the total amount of compensation which would otherwise have been required to be paid in respect of the acquisition of such lands. Compensation in case of recently altered buildings.

27. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings. Power to Corporation to enter upon property for survey and valuation.

28. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Corporation or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of any waters which the Corporation are from time to time empowered to take. Power to agree as to drainage of lands &c.

A.D. 1930.

Contracts
for sup-
plying
water in
bulk out-
side limits
of supply.

29. The Corporation may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply. Provided also that nothing in this section shall authorise the Corporation to lay any mains or other pipes or to interfere with any street beyond the limits of supply.

Amendment
of section 5
of Act of
1884.

30. Section 5 (Charge for water within and without the borough) of the Rochdale Corporation Act 1884 is hereby repealed.

Charges for
water used
with re-
frigerating
apparatus.

31. Where a person who takes a supply of water from the Corporation for any purpose desires to use the water so supplied for or in connection with a refrigerating apparatus or for or in connection with any apparatus depending while in use upon a supply of continuously running water the Corporation may if they think fit require that all water used for or in connection with the said apparatus shall—

- (a) be taken by measure on the conditions and at the rates for the time being in force for the supply of water by measure and if the person only takes a supply for domestic purposes the minimum quarterly charge for the water so taken by measure shall be ten shillings; or
- (b) be paid for at such rates as may be agreed between the person and the Corporation.

Recovery of
rates from
persons
removing.

32. If a justice is satisfied on complaint by any collector of the Corporation that any person is quitting or about to quit any premises to which the Corporation supply water and has failed to pay on demand any water rate which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant

under his hand authorising the said collector to seize A.D. 1930.
 forthwith and detain the goods and chattels of such
 person until the complaint is determined upon the return
 of the summons.

33. Notwithstanding anything in any Act relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take such supply by measure or on such terms as he and the Corporation shall agree and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut or structure.

Special
 terms for
 supplies to
 caravans &c.

34. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any duly authorised officer of the Corporation may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering either under the said section 57 or under this section or from making an examination under either of those sections he shall for every such offence be liable to a penalty not exceeding five pounds :

Extension
 of power to
 inspect
 premises.

Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and be liable to a penalty under this section.

35. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of the supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or communication pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks

Penalty for
 interfering
 with valves
 &c.

[Ch. lvi.] *Rochdale Corporation Water Act, 1930.* [20 GEO. 5.]

A.D. 1930. — Clauses Act 1847 and the said section shall extend and apply accordingly.

Power to borrow and repayment of borrowed moneys.

36. The Corporation may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any public general Act borrow at interest for the purposes set forth in the first column of the following table any sums not exceeding the respective sums set forth in the second column thereof and all moneys so borrowed shall be chargeable on the revenues of the Corporation and shall be repaid within the respective periods set forth in the third column thereof and the Corporation may apply any sum so borrowed for the said purposes respectively (that is to say) :—

Purpose.	Amount.	Period for repayment.
(1) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.
(2) For the purchase of lands -	£ 40,000	Sixty years from the date or dates of borrowing.
(3) For the construction of Work No. 1 by this Act authorised.	435,520	Sixty years from the date or dates of borrowing.
(4) For the construction of the other works by this Act authorised.	144,480	Thirty-five years from the date or dates of borrowing.

Incorporation of certain financial provisions.

37. The following provisions of the Acts in this section mentioned shall, so far as applicable extend and apply to and in respect of moneys borrowed by the Corporation under this Act as if they were re-enacted herein (that is to say) :—

The Rochdale Corporation Water Act 1898—

Section 70 (Application of money borrowed).

The Rochdale Corporation Act 1900—

Section 111 (As to repayment &c.) except subsection (4) thereof;

Section 112 (As to sinking fund).

The Rochdale Corporation Act 1908—

Section 39 (Mode of raising money) :

A.D. 1930.

The SCHEDULE referred to in the
foregoing Act.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY
MAY BE TAKEN COMPULSORILY.

Urban District.	No. on deposited plans.	Description of property in book of reference.
Whitworth - - -	1	Settling pond.
Wardle - - -	215	Reservoir slopes and banks.
	333	Reservoir slopes and banks.
	334	Field.
	357	Reservoir slopes banks rough land streams ruins occupa- tion road and footpath.

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FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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Provided that the periods for repayment referred to in the section of this Act whereof the marginal note is "Power to borrow and repayment of borrowed moneys" shall be deemed to be "the prescribed periods" for the purposes of the application of the said sections 111 and 112. A.D. 1930.
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38. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made shall be defrayed out of the general rate fund and the general rate. Expenses of execution of Act.

39. The provisions contained in section 46 (Recovery of penalties) and section 47 (Saving for indictment &c.) of the Rochdale Corporation Act 1908 and in section 188 (Recovery of demands) of the Rochdale Corporation Act 1925 shall so far as applicable extend and apply as if they were re-enacted in this Act. Incorporation of certain existing provisions.

40. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

41. The costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of such other funds and in such proportions as the Corporation shall determine or out of moneys to be borrowed under this Act for that purpose. Costs of Act.